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Provision of June 8, 2023

Register of provisions

No. 244 of June 8, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by

Prof. Pasquale Stanzione, President, Prof.

Ginevra Cerrina Feroni, Vice President, Dr.

Agostino Ghiglia and Attorney Guido Scorza, members, and

Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament

and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003 (Code regarding the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of August 10, 2018, containing "Provisions for the adaptation of national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD to the inspection report prepared by the Guardia di Finanza – Special Unit for Privacy Protection and Technological Fraud, which identified the presence of a

video surveillance system at the registered office of Mirva s.r.l. that was not compliant with the provisions of Articles 5, paragraph 1, letter a),

114, and 157 of Legislative Decree 196/2003 (Code regarding the protection of personal data);

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary

General pursuant to Article 15 of the Guarantor's Regulation No. 1/2000;

REPORTING Prof. Pasquale Stanzione;

WHEREAS

1. The acts of verification and the initiation of the procedure.

By note dated February 15, 2019, the Authority was informed of the unlawful installation of a video surveillance system by the company Mirva s.r.l. (hereinafter, the Company), located at

the registered office of the Company, situated in Settimo

Milanese (MI), Via Keplero 21, as it was operating without informative signs and capable of capturing areas not pertaining to the Company.

The Office initiated a preliminary investigation regarding the reported facts by sending two requests for information to the Company (note dated May 20, 2019, and note dated September 5, 2019).

Having received no response to the aforementioned requests

for information, the collaboration of the Special Unit for Privacy Protection and

Technological Fraud of the Guardia di Finanza was requested regarding the

collection of information related to the reported incident, and a

procedure was simultaneously initiated, pursuant to Article 166, paragraph 5, of

Legislative Decree 196/2003 (prot. 39735 of January 18, 2019), regarding the failure to respond to the investigative requests of the Guarantor.

During the inspection, it was found that, at the Company's premises, there were

"six cameras, two inside the warehouse and four monitoring the external areas" capable of capturing the work activities of employees (particularly the two installed inside the structure).

The system was found to be operational, and it was

established that there was only one informative sign regarding the

video surveillance system, visible to anyone entering the warehouse (cf. documents from the Unit - minutes

of operations carried out on December 12, 2019).

During the inspection operations, it was reported:

- that "The system is not owned by the Company [but has been] loaned by the Security Institute";
- that the system, installed to ensure the safety of goods and people, consists of 6 cameras, of which two are positioned to monitor the entrance with a field of view that captures

"in addition to the area directly in front of the warehouse, a shared area with another company", as well as "a short stretch of the road in front"; two that capture only areas pertaining to the Company; two others located inside the structure with a view directed towards some limited parts of the work area, but – as specified by the recorders – capable of "capturing the work activities of employees";

- of not possessing a specific authorization from the Territorial Labor Inspectorate;
- that "the images, in addition to being viewed by the legal representative, can also be viewed via the internet by the Security Institute, but only in case of an alarm."

Based on the findings of the aforementioned verification, the Office, by note No. 4348 of February 3, 2020, initiated a second procedure for the adoption of corrective measures regarding the violation of the principle of lawfulness of processing under Article 5, paragraph 1, letter a), of Article 4 of Law No. 300/1970, referred to by Article 114 of the Code as well as Article 37 of the Regulation.

The notification of the violations related to this procedure was sent by registered mail with acknowledgment of receipt addressed to the registered office of Settimo Milanese (MI), Via Keplero 21.

With reference to this communication, it is noted that, despite the confirmed correspondence of the indicated address with that resulting from the Company's chamber registration, the relevant package was returned for "unavailability" of the recipient, as indicated by the annotation dated February 10, 2020, affixed to it.

Two further attempts to notify were then made on March 31, 2020, and April 7, 2020, via PEC, to the digital domicile of the Company

resulting from the chamber registration. (mirvasrl@pec.ambs.it), both attempts were unsuccessful, as the relevant message was not delivered due to "invalid address."

Only on 11.11.2021, the Guardia di Finanza – Compagnia Rho, at the request of the Authority, proceeded to notify the party of the note containing the act initiating the sanctioning procedure pursuant to Article 166, paragraph 5 of Legislative Decree 196/2003 (prot. no. 4348 of 3.2.2020). In this regard, it is necessary to take into account the established orientation of the jurisprudence of legitimacy that has extended to the notification in the administrative sanctioning procedure the application of the principle established by the United Sections for acts of civil proceedings, according

to which in the case of notification [...] not having been successful for reasons not attributable to the notifier, upon learning of the negative outcome, in order to preserve the effects related to the original request, the notifier must reactivate the notification process immediately and carry out the necessary acts for its completion in a timely manner, that is, without exceeding the time limit equal to half of the terms indicated by Article 325 of the Civil Procedure Code, except for exceptional circumstances of which rigorous proof is provided (Cass. civ. s.u. ruling no. 14594/2016; previously, Cass. civ. s.u. no. 17352/2009), specifying how this latter reference should be understood as a call to half of the term assigned by law for each notification activity (Cass. civ. ord. no. 36463/2022; Cass. civ. ord. no. 28136/2022; Cass. civ. ord. no. 28388/2017; Cass. civ. ord. no. 28618/2017).

In light of this principle, it must be noted that the first attempt to renew the notification, carried out on 31.3.2021, more than a year after the Authority learned of the negative outcome of the notification attempt via registered mail, is late, as it was certainly made beyond the 60-day limit (corresponding to half of the peremptory term of 120 days, provided by Table B), attached to the Regulation of the Guarantor no. 2/2019, for the notification of the alleged violations ascertained), identified by applying the criterion developed by the aforementioned jurisprudence of legitimacy.

And this conclusion must also be confirmed taking into account the suspension of the terms of 83 days, from 23 February 2020 to 15 May 2020, linked to the COVID-19 epidemiological emergency (pursuant to Article 103, paragraphs 1 and 1-bis, D.L. no. 18/2020 and Article 37, paragraph 1, D.L. no. 23/2020).

All of this considered, it is therefore deemed necessary to order the archiving of the second procedure, initiated by the act prot. no. 4348 of 3.2.2020.

2. The outcome of the investigation and the sanctioning procedure.

Based on the documents, it is noted that the Company, having not provided a response to the Guarantor's request within the established terms, has violated the obligation provided for by Article 157 of the Code regarding the protection of personal data.

3. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i), and 83 of the Regulation; Article 166, paragraph 7, of the Code).

Pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166, paragraphs 3 and 7 of the Code, the Guarantor orders the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, letter a) of the Regulation, by adopting an injunction order (as per Article 18 of Law 24.11.1981, no. 689), in relation to the processing of personal data carried out by the Company, which has been found to be unlawful, in the terms outlined above, of Article 157 of the Code.

With reference to the elements listed in Article 83, paragraph 2 of the Regulation for the purpose of applying the administrative pecuniary sanction and its quantification, considering that the sanction must "in any case [be] effective, proportionate and dissuasive" (Article 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been considered: in relation to the nature, gravity, and duration of the violation, the nature of the violation concerning the duty of loyal cooperation with the Authority has been considered; with reference to the intentional or negligent nature of the violation and the degree of responsibility of the data controller, it is noted that the violation is of a negligent nature; the absence of specific previous offenses against the Company. In light of the above elements and the evaluations made, it is deemed appropriate, in this case, to apply to Mirva s.r.l. the administrative sanction of payment of a sum equal to 5,000 euros (five thousand).

It is also deemed that the conditions referred to in Article 17 of Regulation no. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor, are met.

It is noted that, if the conditions are met, the sanction referred to in Article 83, paragraph 5, letter e) of the Regulation may be applied administratively.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

notes the unlawfulness of the processing carried out by Mirva s.r.l., in the terms stated in the motivation, for the violation of Article 157 of Legislative Decree 196/2003;

DETERMINES

to archive, for the reasons specifically stated above, the procedure initiated against Mirva s.r.l., with note prot. no. 4348 of 3.2.2020;

ORDERS

pursuant to Article 58, paragraph 2, letter i) of the Regulation, Mirva s.r.l., with registered office in Settimo Milanese (MI) Via Keplero 21, VAT no. 10226240967, to pay the sum of 5,000 euros (five thousand) as an administrative pecuniary sanction for the violation indicated in this document.

provision;

ORDERS

therefore Mirva s.r.l. to pay the aforementioned sum of five thousand euros (€5,000), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981.

It is represented that pursuant to Article 166, paragraph 8 of the Code, the option for the offender to settle the dispute by means of payment – always according to the methods indicated in the attachment – of an amount equal to half of the sanction imposed within the term referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011 provided for the submission of the appeal as indicated below;

ORDERS

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011,

an appeal against this provision may be filed with the ordinary judicial authority, with an application submitted to the ordinary court of the place identified in the same Article 10, within the term of thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, June 8, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Mattei